

Atish Mukherjee vs Wridipta Mukherjee (Sanyal) on 16 February, 2015

Author: Harish Tandon

Bench: Harish Tandon

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C.O. 02 of 2015

Atish Mukherjee
Vs.
Wridipta Mukherjee (Sanyal)

Mr. Phatick Chandra Das.

... for the petitioner.

Mr. Y. G. Chowdhury, Mr. Syed Nazmul Hossain.

... for the opposite party.

By an order dated 4th February, 2015 this Court directed the parties to explore the possibility of reconciliation by meeting at the parental residence of the wife on 15th February, 2015.

The learned advocate for the petitioner submits that his client did not go to the residence of the wife, despite the order being communicated to him.

From the conduct of the petitioner, it appears that he is disinterested in revival of their marital tie.

Learned advocate for the petitioner submits that the Court should proceed to decide the revisional application on merit.

By the impugned order, the Trial Court disposed of an application under Section 24 of the Hindu Marriage Act, 1955 directing the husband/petitioner to pay the alimony pendente lite of Rs. 5,000/- per month on and from the month of February, 2014 together with the litigation costs of Rs. 5,000/-.

The wife alleged in the said application that the income of the husband is of Rs. 40,000/- from his Export and Import business. The petitioner relied upon the 'income tax return' to show that his income is far less than what is alleged by the wife in the said application.

The Court after taking into account the fact that the husband/petitioner is in fact running a business, disbelieved the income disclosed before the Court and awarded the maintenance of Rs.5,000/- per month.

The wife has not challenged the said order, meaning thereby that she impliedly accepted the same.

Learned advocate for the petitioner submits that his client instituted a suit for restitution of conjugal right under Section 9 of the said Act and, therefore, the Court should not have awarded the maintenance to the wife.

I am not at all impressed by the aforesaid submission.

Section 24 of the Hindu Marriage Act, 1955 clearly provides that where in any proceeding under this Act it appears to the Court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and income of the respondent, it may seem to the Court to be reasonable.

Even if a proceeding is initiated under Section 9 of the said Act for restitution of conjugal right, it is a proceeding under the Act and, therefore, the petition under Section 24 of the said Act is maintainable.

This Court does not find any ground to interfere with the quantum of maintenance awarded by the court below, as this Court finds that the same is reasonable and have been arrived at taking into account the income of the husband.

The revisional application is devoid of merit. The same is hereby dismissed.

There will be no order as to costs.

(HARISH TANDON, J.)